

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

Index No.: _____

Date Purchased: _____

SUMMONS

-----X
WILLIAM GONZALEZ,

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

vs.

The basis of venue is:
Place of Occurrence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY
OF NEW YORK, POLICE OFFICER "KOZARAC" SHIELD
NUMBER 14943,

Plaintiff resides at:
301 East 193rd Street
Bronx, New York 10458

Defendants.

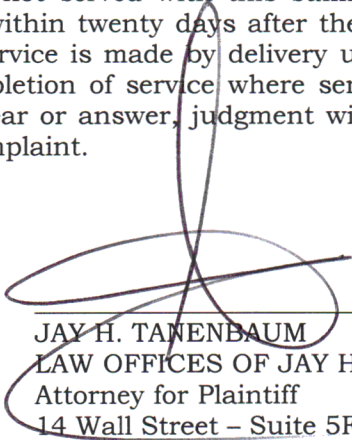
County of Bronx

-----X

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 5, 2023



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street – Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-23J-0006

TO:

THE CITY OF NEW YORK,
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, New York 10038

POLICE OFFICER "KOZARAC" SHIELD NUMBER 14943

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

Index No.:

Date Purchased:

-----X
WILLIAM GONZALEZ,

VERIFIED COMPLAINT

Plaintiff,

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY
OF NEW YORK, POLICE OFFICER "KOZARAC" SHIELD
NUMBER 14943,

Defendants.
-----X

Plaintiff, by his attorney, **Law Offices of Jay H. Tanenbaum**, complaining of the
Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at the time of the commencement of this action, Plaintiff **William Gonzalez**, resided in the County of Bronx, City and State of New York.
2. That at all times herein mentioned, Defendant, The City of New York, hereinafter referred to as "City" was, and still is, a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, New York City Police Department and The Police Department of the City of New York, hereinafter referred to as "NYPD" was and is an agency of the defendant, CITY.
4. That prior hereto on February 28, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days and up to the commencement of this action to make any

adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That the defendants requested on oral examination pursuant to General Municipal Law Section 50-H and said request was complied with May 31, 2023.

6. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

7. That at all times hereinafter mentioned, the Defendant, Police Officers "Kozarac", hereinafter referred to as "Police Officer", was and is a police officer employed by the defendant, NYPD, and at all times herein were acting in such capacity as the agents, servants and employees of the CITY and NYPD.

8. Upon information and belief, at all times hereinafter mentioned, and on January 13, 2023, at approximately 11:00 p.m. several police officers including "Police Officer" were on duty and in the vicinity of East 194th Street and Marion Avenue, Bronx, New York.

9. That prior to January 13, 2023, "Police Officer" was individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

10. That on January 13, 2023, "Police Officer" individually and/or collectively was acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

11. That on January 13, 2023, at approximately 11:00 p.m., Plaintiff, **William Gonzalez**, was lawfully in the vicinity of East 194th Street and Marion Avenue, Bronx, New York, and doing nothing illegal, improper or acting suspicious in anyway.

12. That on January 13, 2023, at approximately 11:00 p.m. in the vicinity of East 194th Street and Marion Avenue, County of Bronx, City and State of New York, Defendant, "Police Officer", approached Plaintiff, **William Gonzalez**, for no reason,

stopped plaintiff by his car, harassed, detained, frisked, searched, assaulted and battery the plaintiff.

13. It is alleged herein that plaintiff, **William Gonzalez**, was stopped and searched absent reasonable suspicion.

14. Upon information and belief, at all times hereinafter mentioned, and on January 13, 2023, at approximately 11:00 p.m. several police officers including "Police Officer" were on duty and in the vicinity of East 194th Street and Marion Avenue, Bronx, New York.

15. That on January 13, 2023, "Police Officer" was individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

16. That on January 13, 2023, "Police Officer" individually and/or collectively was acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

17. That on January 13, 2023, at approximately 11:00 p.m., Plaintiff, **William Gonzalez**, was lawfully in the vicinity of East 194th Street and Marion Avenue, Bronx, New York, and doing nothing illegal, improper or acting suspicious in anyway.

18. That on January 13, 2023, at approximately 11:00 p.m. in the vicinity of Marion Road and East 194th Street, County of Bronx, City and State of New York, Defendant, "Police Officer" and other Police Officers, approached Plaintiff, **William Gonzalez**, for no reason, stopped him, harassed, detained, frisked, assaulted and battered the plaintiff.

19. It is alleged herein that plaintiff, **William Gonzalez**, was stopped without reasonable cause absent reasonable suspicion.

20. That at all times herein mentioned the actions for defendants, CITY, NYPD, POLICE OFFICER, as described above were carried out in a reckless, deliberate, willful, malicious and negligent manner.

21. That on all incidents mentioned above, defendant, "Police Officer", was acting as agents and behalf of defendant, CITY and NYPD, and within the scope of their

employment, did intentionally, willfully and maliciously profile, harass, frisked, assaulted and battered the plaintiff, **William Gonzalez**, without probable cause, reasonable cause or legal justification.

22. That because of the above stated premises, Plaintiff **William Gonzalez** was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention; and, as a further result, Plaintiff was, and will continue to be, rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

23. That by reason of the foregoing, Plaintiff William Gonzalez was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First Cause of Action with the same force and effect as if fully set forth at length herein.

25. That the defendants, CITY and NYPD, by their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, supervising its employees including but not limited to defendant, "POLIE OFFICER", in that said police officer, as employees of CITY and NYPD, was not qualified to be hired or retained as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

26. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining and training in that CITY and NYPD failed to adequately investigate above mentioned police officers backgrounds and performances.

27. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training in that CITY and NYPD failed to adequately screen said police officers, failed to

adequately monitor said police officers and failed to adequately discipline said police officers.

28. Defendants, CITY and NYPD, were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officers defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employers on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not harass innocent individuals nor use excessive force when approached for no reason.
29. That by reason of the above, the Plaintiff, WILLIAM GONZALEZ, was injured in mind and body as he was profiled, harassed, frisked, assaulted, battered and rendered sick, sore and damaged.
30. That by reason of the foregoing, Plaintiff, WILLIAM GONZALEZ, has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION

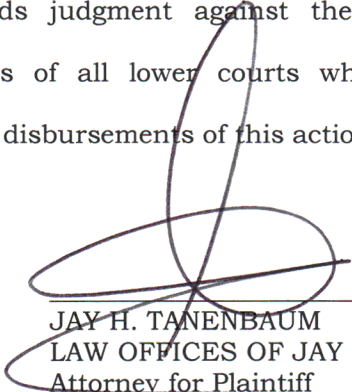
37. The plaintiff, **William Gonzalez**, repeats, reiterates, and realleges, each and every allegation as set forth in the First Cause of Action and Second Cause of Action, with the same force and effect as if hereinafter more fully set forth at length herein.

38. This is a civil rights action in which the plaintiff, **William Gonzalez**, seeks relief from the defendants' violation of his rights secured by the Civil Rights Act of 1871, 42 U.S.C. §1983, and of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and for rights secured under the laws and Constitution of the State of New York.

39. That, by reason of the foregoing, the plaintiff, **William Gonzalez**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
July 5, 2023



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street – Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-23J-0006

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff (s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff (s) is that plaintiff (s) reside (s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd./

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York)SS:

William Gonzalez Being duly sworn, deposes and says:

That deponent is the plaintiff (s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd./

William Gonzalez

Sworn to before me this

5th day of July, 2023

Eliette A. Alvarez

ELIETTE A. ALVAREZ
Notary Public, State of New York
No. 01AI 4796927
Qualified in Orange County
Commission Expires November 30, 2024

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER "KOZARAC" SHIELD
NUMBER 14943,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

14 Wall Street - Suite 5F

New York, New York 10005

Tel No.: (212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Wednesday, July 05, 2023

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM